

Section I: Introduction

In this paper, I will challenge the author's claim that no morally relevant difference exists between the two situations explained in "Learning From Arguments". The first situation concerns the murder of a patient to save five people, while the second situation is the diversion of a trolley, killing a single person while saving the lives of five people. In the first section, I will explain the two situations and then present the author's argument as to why these situations are not morally different. In the second section, I will argue that there is a morally relevant difference between these two situations. In the third section, I will address a potential objection to my argument and provide a defense.

To begin, consider the first dilemma, "Organ Distribution" (193), involving Nick and his doctor, Jonathan. Nick comes to the hospital for a regular checkup, and Jonathan realizes that Nick is a suitable donor for five patients in the Intensive Care Unit. Jonathan painlessly kills Nick to harvest his organs, saving the lives of the five patients through transplants. The five patients, who would have otherwise died, all live for a long time after the transplants.

Furthermore, consider the second scenario in the "Trolley Lever" (198). Corrine is a bystander to a trolley speeding down its tracks without a driver. There are five pledges from a fraternity that are tied down to the tracks and will die if the trolley continues on its original path. A lever next to Corrine can change the trolley's direction and divert it to a different track. However, if diverted, the trolley will hit and kill the pledge master on the other track. Corrine pulls the lever and saves the five pledges at the cost of killing the pledge master.

These two scenarios lead to "The Trolley Argument" (198):

(TR1) If there is no morally relevant difference between two actions A and B, and A is the right thing to do, then B is the right thing to do

(TR2) Diverting the trolley was the right thing to do

(TR3) There is no morally relevant difference between diverting the trolley and killing Nick

(TR4) So, killing Nick was the right thing to do

The first premise is defended through the reasoning that morality can't be arbitrary, and actions A and B must have something definitively different to set them apart morally. The second premise says that Corrine was correct in diverting the trolley as it seems obvious that saving five people over one person is the right choice. The third premise claims that diverting the trolley and killing Nick do not differ morally at all. The author defends this idea by drawing a parallel between Corrine and Jonathan, who both sacrifice one life to save five others. TR4 is the conclusion that because diverting the trolley was the right thing to do, then killing Nick must have been the right thing to do. My aim in this paper is to argue against TR3 and show that there is a morally relevant difference between diverting the trolley and killing Nick, as Jonathan has a direct intent to murder Nick, while Corrine indirectly kills the pledge master.

Section II: Objection

The author's premise, TR3, asserts that the two scenarios involving Corrine diverting the trolley and Jonathan's murder of Nick are morally equivalent. However, this premise is flawed because it overlooks the important distinction between direct intent and unintended consequence.

First, I argue that Jonathan's action of killing Nick is intentional, as Nick's death is deliberate and essential to saving the five patients. His reliance on murder as the central means to accomplish his goal demonstrates a clear case of direct intention. However, in Corrine's situation, she indirectly kills the pledge master as her main intent is to divert the trolley. The death of the pledge master is not necessary but rather an unintended consequence of Corrine's attempt to save the pledges. Diverting the trolley was the action that directly saved the pledges' lives, whereas, in Jonathan's case, Nick's murder was the action that saved the patients' lives. This is an important difference between the two cases because it highlights the distinction between directly killing someone and an indirect death as a consequence. For a real-world example, consider an air strike targeting a military base located in a civilian area. While civilian deaths might occur as a side effect of the attack, these deaths are not necessary for the intended outcome and would be considered morally distinct from a strike that directly targets civilians. Similarly, Corrine diverting the trolley results in the pledge master's unintentional death, whereas Jonathan's plan directly targets Nick in order to save the patients.

The philosophical principle of the "Doctrine of Double Effect" shows the fundamental distinction between these situations by explaining how they differ ethically. This principle explains that negative side effects can be morally permissible if the outcome is beneficial and

positive. However, harm cannot be the primary means to achieving this outcome. In Jonathan's case, harm to Nick is a direct means to save the five patients, which violates this principle. This renders the benefit, of saving the five patients, immoral because of how this outcome was achieved.

In contrast, Corrine's decision does not directly involve the pledge master in any way, as their death is a side effect, not the intended means. The direct means of saving the pledges was the redirection of the trolley, not the killing of the pledge master. This indirectness of the harm caused by pulling the lever aligns with the Doctrine of Double Effect, which justifies Corrine's decision as morally permissible. Jonathan's intent to murder as a way to achieve his goal compared to Corrine's indirect role in the pledge master's death highlights the moral distinction between these two. Regardless of whether both situations lead to similar outcomes of saving five lives, this contrast undermines the validity of TR3.

Section III: Rebuttal

In this section, I will provide a counterargument to my objection and then defend my argument. One could argue that the "Organ Distribution" (193) scenario could be revised to align Jonathan's intentions with Corrine's. Imagine Jonathan was now faced with a lever that he could pull to instantly kill Nick and transfer his organs to the patients. This would still save the lives of all five patients and prevent Jonathan from having to directly murder Nick himself. This scenario mirrors Corrine in the "Trolley Lever" situation, where Jonathan's intent would simply be to pull the lever, not to murder Nick. Comparable to how Corrine intends to divert the trolley to save the pledges, Jonathan only intends to pull the lever and save the patients. Therefore, no morally

relevant difference exists between the two scenarios if the intents of both Corrine and Jonathan are the same.

However, I argue that even in this revised case, the implied means by which Jonathan achieves his goal remain morally distinct from Corrine's. While both characters only intend to pull a lever, the implications of this action differ significantly. Jonathan's action will directly cause Nick's death, as it's an intended consequence to save the patients, making harm still mandatory. On the other hand, Corrine's act of pulling the lever results in the pledge master's death as an unintended consequence, not a requirement for saving the pledges. The relevant moral difference can now be observed in the role of harm in each scenario rather than the difference in intent. Even if Jonathan's sole intent is to pull the lever, the harm-inducing nature of his action remains unchanged because Nick must die for the five patients to live. This demonstrates that altering Jonathan's intent does not eliminate the moral wrongness of his action or prevent the death that will come to Nick. Thus, even when Jonathan and Corrine are reimagined to have identical intentions, the moral distinction persists due to the necessity of harm in Jonathan's case. This example invalidates TR3, revealing that no revision to the "Organ Distribution" argument can account for how the means of achieving the outcome remain different. Therefore, diverting the trolley and killing Nick cannot be considered to be morally similar.

Works Cited

Korman, Daniel Z. *Learning from Arguments* (2022)